



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1400: public safety employees; counseling; wellness

KOLODIN FLOOR AMENDMENT

1. Clarifies any crisis response services communication must remain confidential and may not be disclosed, except if any of the specified circumstances occurs *and the communication is not otherwise privileged*.

KOLODIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1400
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 38, chapter 8, article 1, Arizona Revised
3 Statutes, is amended by adding section 38-1121, to read:

4 38-1121. Law enforcement agency; wellness program;
5 confidentiality; definitions

6 A. A LAW ENFORCEMENT AGENCY IN THIS STATE MAY ESTABLISH A WELLNESS
7 PROGRAM TO SUPPORT THE MENTAL HEALTH AND WELL-BEING OF THE LAW ENFORCEMENT
8 AGENCY'S EMPLOYEES. THE WELLNESS PROGRAM MAY INCLUDE ALL OF THE
9 FOLLOWING:

10 1. ACCESS TO LICENSED COUNSELING.

11 2. CRISIS RESPONSE SERVICES.

12 3. TRAINING, EQUIPMENT AND TECHNOLOGY NECESSARY FOR AN EMPLOYEE TO
13 PERFORM THE EMPLOYEE'S JOB.

14 4. ANY OTHER SUPPORT SYSTEMS.

15 B. IF A LAW ENFORCEMENT AGENCY CREATES A WELLNESS PROGRAM FOR THE
16 LAW ENFORCEMENT AGENCY'S EMPLOYEES, THE LAW ENFORCEMENT AGENCY SHALL
17 ESTABLISH WRITTEN POLICIES AND PROCEDURES FOR THE PROGRAM.

18 C. ALL PROCEEDINGS, RECORDS, OPINIONS, CONCLUSIONS AND
19 RECOMMENDATIONS ARISING FROM ANY ASPECT OF THE WELLNESS PROGRAM PURSUANT
20 TO THIS SECTION ARE CONFIDENTIAL AND PRIVILEGED FROM DISCLOSURE EXCEPT IF
21 ANY OF THE FOLLOWING OCCUR:

22 1. THE DESIGNATED PERSON WAIVES THE PERSON'S RIGHT TO
23 CONFIDENTIALITY.

24 2. RELEVANT INFORMATION IS DISCLOSED IN RESPONSE TO A CLAIM MADE BY
25 THE HOLDER OF THE PRIVILEGE AGAINST A LAW ENFORCEMENT AGENCY RELATED TO
26 ANY PROGRAMS OR SERVICES PROVIDED BY THE WELLNESS PROGRAM.

27 3. ANY COMMUNICATIONS OR ADVICE GIVEN WITHIN THE PROGRAM INDICATES
28 CLEAR AND PRESENT DANGER TO THE DESIGNATED PERSON OR TO ANY OTHER PERSON.

1 4. THE COMMUNICATION OR ADVICE IS MADE DURING THE COURSE OF A
2 CRIMINAL INVESTIGATION.

3 5. THE DESIGNATED PERSON VIOLATES ANY OF THE LAW ENFORCEMENT
4 AGENCY'S POLICIES AND THE VIOLATION AMOUNTS TO A VIOLATION OF LAWS THAT IS
5 NORMALLY ENFORCED BY A LAW ENFORCEMENT AGENCY.

6 6. THE DESIGNATED PERSON WHO RECEIVED CRISIS RESPONSE SERVICES
7 VOLUNTARILY TESTIFIES, IN WHICH CASE THE CRITICAL INCIDENT STRESS
8 MANAGEMENT TEAM MEMBER OR PEER SUPPORT TEAM MEMBER MAY BE COMPELLED TO
9 TESTIFY ON THE SAME SUBJECT.

10 D. THIS SECTION DOES NOT RESTRICT OR LIMIT THE RIGHT TO DISCOVER OR
11 USE IN ANY CIVIL ACTION ANY EVIDENCE, DOCUMENT OR RECORD THAT IS SUBJECT
12 TO DISCOVERY INDEPENDENTLY OF THE PROCEEDINGS OF THE WELLNESS PROGRAM.

13 E. FOR THE PURPOSES OF THIS SECTION:

14 1. "CRISIS RESPONSE SERVICES" HAS THE SAME MEANING PRESCRIBED IN
15 SECTION 38-1111.

16 2. "DESIGNATED PERSON" MEANS A LAW ENFORCEMENT OFFICER OR A
17 CIVILIAN EMPLOYEE OF A LAW ENFORCEMENT AGENCY.

18 3. "LAW ENFORCEMENT AGENCY" MEANS A MUNICIPAL POLICE DEPARTMENT, A
19 COUNTY SHERIFF'S OFFICE, A PUBLICLY FUNDED LAW ENFORCEMENT DEPARTMENT AND
20 THE DEPARTMENT OF PUBLIC SAFETY.

21 4. "LICENSED COUNSELING" MEANS COUNSELING PROVIDED BY A LICENSED
22 MENTAL HEALTH PROFESSIONAL.

23 5. "LICENSED MENTAL HEALTH PROFESSIONAL" HAS THE SAME MEANING
24 PRESCRIBED BY SECTION 38-672.

25 Sec. 2. Title 41, chapter 4, article 1, Arizona Revised Statutes,
26 is amended by adding section 41-710.04, to read:

27 41-710.04. Crisis response services program; confidential
28 communications; definitions

29 A. AN AGENCY IN THIS STATE MAY ESTABLISH A CRISIS RESPONSE SERVICES
30 PROGRAM TO PROVIDE SUPPORT TO PUBLIC SAFETY EMPLOYEES WHO HAVE BEEN IN OR
31 EXPOSED TO A TRAUMATIC EVENT OR AN EMOTIONAL EXPERIENCE IN THE COURSE OF
32 EMPLOYMENT.

33 B. ANY CRISIS RESPONSE SERVICES COMMUNICATION SHALL REMAIN
34 CONFIDENTIAL AND MAY NOT BE DISCLOSED TO ANY INDIVIDUAL WHO WAS NOT
35 PRESENT AT THE CRISIS RESPONSE SERVICES SESSION, EXCEPT IF ANY OF THE
36 FOLLOWING OCCURS [AND THE COMMUNICATION IS NOT OTHERWISE PRIVILEGED]:

37 1. THE DESIGNATED PERSON WAIVES THE PERSON'S RIGHT TO
38 CONFIDENTIALITY.

39 2. ANY COMMUNICATIONS OR ADVICE GIVEN WITHIN THE PROGRAM INDICATES
40 CLEAR AND PRESENT DANGER TO THE DESIGNATED PERSON OR TO ANY OTHER PERSON.

41 3. THE COMMUNICATION OR ADVICE IS MADE DURING THE COURSE OF A
42 CRIMINAL INVESTIGATION.

43 4. THE DESIGNATED PERSON VIOLATES ANY OF THE AGENCY'S POLICIES AND
44 THE VIOLATION AMOUNTS TO A VIOLATION OF LAWS THAT IS NORMALLY ENFORCED BY
45 A LAW ENFORCEMENT AGENCY.

46 5. THE DESIGNATED PERSON WHO RECEIVED CRISIS RESPONSE SERVICES
47 VOLUNTARILY TESTIFIES, IN WHICH CASE THE CRITICAL INCIDENT STRESS

1 MANAGEMENT TEAM MEMBER OR PEER SUPPORT TEAM MEMBER MAY BE COMPELLED TO
2 TESTIFY ON THE SAME SUBJECT.

3 C. A CRISIS RESPONSE SERVICES DESIGNATED PERSON SHALL HOLD A
4 PRIVILEGE FROM DISCLOSURE OF ANY CRISIS RESPONSE SERVICES COMMUNICATION IN
5 ANY DISCIPLINARY PROCEEDING OR ANY CIVIL OR CRIMINAL PROCEEDING UNLESS IT
6 CONTAINS INFORMATION EXEMPTED PURSUANT TO SUBSECTION B OF THIS SECTION.
7 UNDER THIS PRIVILEGE, THE CRISIS RESPONSE SERVICES COMMUNICATION IS
8 SUBJECT TO THE SAME PROTECTIONS AS ATTORNEY-CLIENT PRIVILEGE.

9 D. THIS SECTION DOES NOT PROHIBIT ANY OF THE FOLLOWING:

10 1. THE AGENCY USING OR SHARING ANONYMOUS DATA FOR RESEARCH,
11 STATISTICAL ANALYSIS OR EDUCATIONAL PURPOSES.

12 2. AN AGENCY EMPLOYEE'S DISCLOSURE OF AN OBSERVATION OF A CRISIS
13 RESPONSE SERVICES DESIGNATED PERSON OUTSIDE OF A CRISIS RESPONSE SERVICES
14 COUNSELING SESSION THAT IS NOT CONTAINED IN ANY CRISIS RESPONSE SERVICES
15 COMMUNICATION.

16 3. AN AGENCY LAW ENFORCEMENT OFFICER'S DISCLOSURE OF KNOWLEDGE
17 ABOUT A CRISIS RESPONSE SERVICES DESIGNATED PERSON THAT IS NOT GAINED FROM
18 CRISIS RESPONSE SERVICES COMMUNICATION.

19 E. FOR THE PURPOSES OF THIS SECTION:

20 1. "CRISIS RESPONSE SERVICES" HAS THE SAME MEANING PRESCRIBED IN
21 SECTION 38-1111.

22 2. "CRISIS RESPONSE SERVICES COMMUNICATION" MEANS ANY ORAL OR
23 WRITTEN CRISIS RESPONSE SERVICES COMMUNICATION MADE IN THE COURSE OF, OR
24 APPLICATION FOR, A COUNSELING SESSION OR ANY COMMUNICATION BY A CRISIS
25 RESPONSE SERVICES DESIGNATED PERSON REGARDING THE CONTENTS OF A CRISIS
26 RESPONSE SERVICES COUNSELING SESSION TO ANOTHER CRISIS RESPONSE SERVICES
27 MEMBER, STAFF MEMBER OF A CRISIS RESPONSE SERVICES PROGRAM OR THE
28 SUPERVISOR OF A CRISIS RESPONSE SERVICES PROGRAM.

29 3. "CRISIS RESPONSE SERVICES COUNSELING SESSION" MEANS ANY
30 COUNSELING FORMALLY PROVIDED THROUGH A CRISIS RESPONSE SERVICES PROGRAM
31 BETWEEN A CRISIS RESPONSE SERVICES MEMBER AND ONE OR MORE PUBLIC SAFETY
32 EMPLOYEES.

33 4. "DESIGNATED PERSON" MEANS A LAW ENFORCEMENT OFFICER OR A
34 CIVILIAN EMPLOYEE OF A LAW ENFORCEMENT AGENCY.

35 Enroll and engross to conform

36 Amend title to conform

ALEXANDER KOLODIN

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